Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

<u>Counsel and Parties Please Note:</u>
Law and Motion in Department N16 is heard on Wednesdays at 9:00 a.m.

Date: June 17, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, <u>after contacting opposing party/counsel</u>. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion <u>only upon stipulation of all affected parties.</u>

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Zometa vs. Toyota Motor Sales, U.S.A., Inc.	**OSC OFF CALENDAR** **CMC REMAINS**
2	Farley vs. Hurlburt	**TENTATIVE RULING:** For the reasons set forth below, Defendant City of Anaheim's Demurrer to Plaintiff Mallory Farley's Second Amended Complaint is SUSTAINED, without leave to amend. As a preliminary matter, Plaintiff filed an Opposition on 6/8/26, which was untimely pursuant to Code Civ. Proc., § 1005(b). Plaintiff simultaneously filed an ex parte application for an order extending the time to file her Opposition to the demurrer, which was DENIED. The court will not consider the untimely Opposition. Plaintiff's request for judicial notice is also DENIED as untimely. **<u>Standard</u>** A demurrer only tests the sufficiency of the pleadings. (*See Satyadi v. West Contra Costa Healthcare District* (2014) 232 Cal.App.4th 1022, 1028 [in analyzing a demurrer, the court looks only to the face

of the pleadings and to matters judicially noticeable and not to the evidence or other extrinsic matters]).

In reviewing the propriety of the sustaining of a demurrer, the "court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. [Citations.] The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.] The judgment must be affirmed 'if any one of the several grounds of demurrer is well taken. [Citations.]' [Citation.] However, it is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory. [Citation.] And it is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379 [citing *Aubry v. Tri–City Hospital Dist*. (1992) 2 Cal.4th 962, 967].). A court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.)

<u>Government Claim</u>

First, Defendant City argues that Plaintiff failed to comply with the Government Claims Act by failing to file a timely written claim prior to filing this lawsuit.

Gov. Code § 911.2 provides: "(a) A claim relating to a cause of action for death or for injury to person or to personal property or growing crops shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action. A claim relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the cause of action."

Plaintiff alleges the following in her Second Amended Complaint: "Plaintiff has complied with the California Government Claims Act. On October 30, 2024, Plaintiff presented a claim for damages to the City of Anaheim. The claim was submitted within one year of Plaintiff's discovery of the full scope of Defendants' misconduct, as detailed in the Factual Allegations below, meeting the 1 year statute of limitations pursuant to Government Code § 911.2." (SAC, ¶ 7). On November 26, 2024, the City of Anaheim issued a written denial of the claim. However, this denial was legally defective because it failed to include the mandatory warning language required by Government

Code §§ 911.8 and 913. Specifically, the City's notice did not advise Plaintiff of the six-month statute of limitations to file a court action or of the need to consult an attorney. (SAC, ¶ 8). Because the City's denial letter was statutorily deficient, it failed to trigger the six-month statute of limitations under Government Code § 945.6(a)(1). (SAC, ¶ 9).

On December 12, 2022, Plaintiff reported housing violations to the City of Anaheim Code Enforcement Division, citing substandard and untenantable conditions in violation of state and local housing laws, including California Civil Code § 1941 and Health and Safety Code § 17920.3. (SAC, ¶ 16). Defendant Bianca Hurlburt, a Code Enforcement Officer for the City of Anaheim, was assigned to investigate Plaintiff's complaint. (SAC, ¶ 18). On March 23, 2023, despite having direct knowledge of ongoing, un-remediated violations and having received no proof of repairs, Defendant Hurlburt prematurely and improperly closed the enforcement case. (SAC, ¶ 24).

Plaintiff also attached a copy of the email communications between her and Ms. Hulburt, which includes a 2/20/24 email from Plaintiff wherein Plaintiff states: "I did not hear back from you until 3/21/23 having received your last voicemail, and unaware you closed the case 3/23/23, I returned your call 4/4/23 and left a voicemail. I called again, 6/29/23 to inquire about the status of the case and requested it be reopened." (SAC, Ex. F).

Finally, Plaintiff alleges that on October 3, 2023, "[a]fter learning she might have a right to the records despite Hurlburt's contrary statement, Plaintiff submitted a Public Records Act request to the City for the code enforcement file while she waited for the record on appeal to be prepared. The documents were received via email on October 20, 2023. ii. Plaintiff did not open or review the October 20, 2023, email at that time." (SAC, ¶ 28 i, ii). She alleges: "Upon reviewing the documents on February 20, 2024, Plaintiff discovered for the first time that Defendant Hurlburt had made false statements in the official record to justify the premature closure of the case without any verification of remediation. It was on this date that Plaintiff had knowledge of facts sufficient to suspect that an injury had been suffered due to wrongdoing." (SAC, ¶ 34).

A plaintiff "must allege facts demonstrating or excusing compliance with the claim presentation requirement." (*State of California v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1243; see also *Nelson v. State of California* (1982) 139 Cal.App.3d 72, 7 ["the complaint is vulnerable to a demurrer if it alleges a factual basis for recovery which is not fairly reflected in the written claim”]).

Gov. Code § 911.3 provides:

> (a) When a claim that is required by Section 911.2 to be presented not later than six months after accrual of the cause of action is presented after such time without the application provided in Section 911.4, the board or other person designated by it may, at any time within 45 days after the claim is presented, give written notice to the person presenting the claim that the claim was not filed timely and that it is being returned without further action. The notice shall be in substantially the following form:
> “The claim you presented to the (insert title of board or officer) on (indicate date) is being returned because it was not presented within six months after the event or occurrence as required by law. See Sections 901 and 911.2 of the Government Code. Because the claim was not presented within the time allowed by law, no action was taken on the claim.
> Your only recourse at this time is to apply without delay to (name of public entity) for leave to present a late claim. See Sections 911.4 to 912.2, inclusive, and Section 946.6 of the Government Code. Under some circumstances, leave to present a late claim will be granted. See Section 911.6 of the Government Code.
>
> You may seek the advice of an attorney of your choice in connection with this matter. If you desire to consult an attorney, you should do so immediately.”
>
> (b) Any defense as to the time limit for presenting a claim described in subdivision (a) is waived by failure to give the notice set forth in subdivision (a) within 45 days after the claim is presented, except that no notice need be given and no waiver shall result when the claim as presented fails to state either an address to which the person presenting the claim desires notices to be sent or an address of the claimant.

Gov. Code § 911.4, subd. (a) provides: “When a claim that is required by Section 911.2 to be presented not later than six months after the accrual of the cause of action is not presented within that time, a written application may be made to the public entity for leave to present that claim.”

		First, Plaintiff alleges in her SAC that the statute of limitations is extended by two years because the City failed to give her the requisite notice under Section 911.3. This court previously rejected this contention in its ruling on the demurrer to the First Amended Complaint. (See 1/21/26 Order [ROA 121]). This is particularly true given that "[f]iling a late-claim application within one year after the accrual of a cause of action is a jurisdictional prerequisite to a claim-relief petition." (*Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1779). "When the underlying application to file a late claim is filed more than one year after the accrual of the cause of action, the court is without jurisdiction to grant relief under Government Code section 946.6." (*Id.*) Next, Plaintiff alleges in her SAC that her claim is not time barred pursuant to the delayed discovery rule. "The accrual date for presenting a government tort claim is determined by the rules applicable to determining when any ordinary cause of action accrues. (§ 901.) That date may be postponed under the delayed discovery doctrine." (*S.M. v. Los Angeles Unified School Dist*. (2010) 184 Cal.App.4th 712, 717.) "Under this doctrine, a cause of action does not accrue until the plaintiff discovers, or has reason to discover, the cause of action." (*Id.*) Pursuant to the delayed discovery rule, however, "plaintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of information that would have been revealed by such an investigation." (*Fox v. Ethicon Endo-Surgery, Inc*. (2005) 35 Cal.4th 797, 808). Furthermore, "[t]he Legislature, in codifying the discovery rule, has also required plaintiffs to pursue their claims diligently by making accrual of a cause of action contingent on when a party discovered or *should have* discovered that his or her injury had a wrongful cause." (*Id.* [emphasis in original]). Plaintiff's facts demonstrate that she was on notice of suspected wrongdoing at the very <u>latest</u> on October 20, 2023, when she received responsive records to her Public Records Act request (though her SAC suggests that she was aware that her matter has been closed in June of 2023). If the court were to grant the latest date of October 20, 2023, and were to impose the one-year deadline rather than the six month deadline, Plaintiff's claim would still be untimely, as she did not file her claim until October 30, 2024, which is more than one year pursuant to Gov. Code § 911.2. Plaintiff alleges that she did not open

the responsive documents until February of 2024 because she was busy with other litigation. However, this does not negate that she was on notice, as she had the documents in her possession, was required to conduct a reasonable investigation, and *should have* discovered that her alleged injury had a wrongful cause upon receiving the records. (*Fox, supra*, 35 Cal.4th at 808).

Accordingly, Plaintiff's claims are barred due to her untimely claim. Because this is Defendant's second demurrer and Plaintiff's third version of her complaint, and because Plaintiff's defect cannot be cured, the court sustains the demurrer without leave to amend.

Immunity

Defendant also alleges that even if Plaintiff's claims were not time barred, each of her causes of action are barred by Gov. Code §§ 818.6 and 818.8.

Gov. Code § 818.6 provides:

"A public entity is not liable for injury caused by its failure to make an inspection, or by reason of making an inadequate or negligent inspection, of any property, other than its property (as defined in subdivision (c) of Section 830), for the purpose of determining whether the property complies with or violates any enactment or contains or constitutes a hazard to health or safety."

As the court held in *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 504: "Construing the immunity of section 818.6 broadly to include the entire process of inspection and reporting (see *Cochran v. Herzog Engraving Co*. (1984) 155 Cal.App.3d 405, 205 Cal.Rptr. 1) (Cochran), the Court of Appeal correctly held that section 818.6 immunizes the City from liability for failing, after an inspection, to take the additional step of recording with the county recorder the information so discovered."

Plaintiff's claims are based on the City's failure to inspect her unit for the purpose of determining whether the property complies with or violates any enactment or contains or constitutes a hazard to health or safety, as well as the City's failure to take additional steps afterward. (See for example, SAC, ¶¶ 1, 2, 16, 17, 52). Plaintiff has not established that this alleged conduct falls outside of the immunity afforded by Gov. Code § 818.6.

Furthermore, Plaintiff's two fraud claims are subject to the immunity set forth in Gov. Code § 818.8, which provides: "A public entity is

		not liable for an injury caused by misrepresentation by an employee of the public entity, whether or not such misrepresentation be negligent or intentional." Plaintiff's two causes of action for constructive fraud and actual fraud are based on allegedly fraudulent representations and fraudulent concealment/omissions by Ms. Hulburt, for which the City cannot be liable. (See SAC, ¶¶ 80, 87). Accordingly, the demurrer is also sustained on this basis. Defendant shall provide notice.
3	Tamadon vs. Choe	**TENTATIVE RULING:** **<u>Demurrer</u>** Defendant Cliff Wagner demurs to the First Amended Complaint of Plaintiffs Gitty Tamadon, Ray Reza Tamadon, Matthew Greenberger, Eileen Hishino, Jun Hoshino, Jennie Ni, Heather Oglesby, Gavin Oglesby, Raj Pranav, and Raghav Sood. For the following reasons, the demurrer is SUSTAINED with 30 days leave to amend. Defendant Wagner demurs to the 3rd, 4th, 5th, 6th, 7th, 8th, 9th, 10th, 11th, 12th, 13th, 14th, 15th, 16th, 17th, 19th, 20th, 22nd, 23rd, 24th, 25th, 26th, 27th, 28th, 29th, 30th, 32nd, 33rd, 34th, 35th, 36th, 37th, 38th, 39th, 40th, 41st, 42nd, 43rd, 44th, 45th, 47th, 48th, 50th causes of action in Plaintiffs' FAC, challenging the sufficiency of each claim. The court record shows Plaintiffs were served with all moving papers and notice of this continued hearing. (*See* ROA # 1577, 1579, 1581, 1583.) Plaintiffs chose not to file any opposition to the demurrer. The failure to oppose a demurrer may be construed as having abandoned the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 [deeming the plaintiffs to have abandoned an issue where the plaintiffs did not oppose the demurrer on that issue and submitted no argument on the issue in their appellate briefs].) In addition, it is axiomatic that the failure to challenge a contention in a brief results in the concession of that argument. (*See DuPont Merck Pharmaceutical Co. v. Superior* Court (2000) 78 Cal.App.4th 562, 566 [finding plaintiffs conceded an issue by failing to argue the contrary]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [holding "failure to address the

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<tr><td></td><td></td><td>threshold question . . . effectively concedes that issue and renders its remaining arguments moot”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [finding an issue is impliedly conceded by failing to address it].)

The court deems Plaintiffs’ failure to oppose the demurrer to be a concession regarding the merits of Defendant Wagner’s demurrer and on that basis, will sustain the demurrer.

Should Plaintiff desire to file an amended complaint that addresses the issues identified in Defendant Wagner’s demurrer, Plaintiff shall file and serve the amended complaint within 30 days of service of the notice of ruling.

Moving Defendant is ordered to give notice.</td></tr>
<tr><td>4</td><td>Melnykov vs. Hyundai Motor America</td><td>TENTATIVE RULING:

<u>Motion to Compel Arbitration</u>

Defendant Hyundai Motor America moves to compel Plaintiff Ivan Melnykov to arbitrate the claims asserted in the Complaint and to stay this matter pending completion of arbitration. For the following reasons, the motion is DENIED. Defendant’s request for judicial notice is GRANTED. (Evid. Code § 452(d).)

This motion is based on two separate arbitration agreements. First, the motion seeks to compel arbitration based on an arbitration provision contained in the Hyundai “2022 Owner’s Handbook & Warranty Information” (“Owner’s handbook” or “Handbook”). Second, the motion seeks to compel arbitration based on an arbitration provision contained in a Hyundai Bluelink “Connected Services Agreement Terms and Conditions” (“CSA”).

As further explained below, defendant has failed to demonstrate plaintiff’s notice of or assent to the arbitration agreement in the owner’s handbook and has therefore failed to establish the existence of this agreement. As for the arbitration provision in the CSA, the scope of this provision does not cover plaintiff’s claims in this action.

Each arbitration provision is addressed in turn below.

<u>Owner’s Handbook and Warranty Information</u>

Defendant’s motion is based in part on the arbitration agreement in the Owner’s Handbook, typically found in the glove compartment of</td></tr>
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		a vehicle. This Handbook provides certain owner information and sets forth the details of Hyundai's express warranty. (See Ameripour Dec., Ex. 3 [Handbook excerpts, including arbitration agreement at pp. 12-14].) The Handbook sets forth an arbitration agreement at pages 12-14, broadly requiring binding arbitration (for California vehicles) of any and all claims between plaintiff and Hyundai related to or arising out of the vehicle purchase, use or performance of the vehicle, or the vehicle warranty—with the exception of personal injury claims, Magnuson-Moss Warranty Act claims, and claims falling within the jurisdiction of the small claims court—through the American Arbitration Association (AAA) under its Consumer Arbitration Rules. (Ameripour Dec, Ex. 3 [Handbook, pp. 12-14].) There is no signature or signature line to indicate assent. Instead, the arbitration agreement states that plaintiff's mere use of the vehicle indicates his assent. (Id.) Specifically, the last paragraph of the arbitration agreement reads: IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY USING THE VEHICLE, OR REQUESTING OR ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE CONTACT US AT OPT-OUT@HMAUSA.COM WITHIN THIRTY (30) DAYS OF YOUR PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION PROVISION. (Ameripour Dec., Ex. 3 [Handbook, p. 14].) The arbitration agreement also states that it "shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16." (See Ameripour Dec. at Ex. 3 [Handbook, p. 14].) As such, both the procedural and substantive provisions of the FAA apply. (See *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 345-346 [where arbitration agreement states its enforcement is "governed by the [FAA]," both the procedural and substantive provisions of FAA apply].) Under the FAA, the court must compel arbitration of claims covered by an enforceable arbitration agreement. (9 U.S.C. § 3.) The party seeking to compel arbitration has the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence.

		(*Johnson v. Walmart Inc.* (9th Cir. 2023) 57 F.4th 677, 681 (*Johnson*).) Importantly, " 'while doubts concerning the scope of an arbitration clause should be resolved in favor of arbitration, the presumption does not apply to disputes concerning whether an agreement to arbitrate has been made.' [Citations.]" (*Johnson, supra,* 57 F.4th at pp. 680-681.) " '[A]rbitration is strictly a matter of consent ... and thus is a way to resolve those disputes—*but only those disputes*—that the parties have agreed to submit to arbitration.' [Citation.]" (*Id.* at p. 681; accord, *Coinbase, Inc. v. Suski* (2024) 602 U.S. 143, 148.) "As 'arbitration is a matter of contract[,] ... a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.' [Citations.]" (*Johnson,* at p. 681.) To determine whether the parties have agreed to arbitrate a dispute, federal courts apply state-law principles of contract formation. (*Berman v. Freedom Financial Network, LLC* (9th Cir. 2022) 30 F.4th 849, 855.) To form a contract under California law, there must be mutual assent. (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294 (*Herzog*); *Long v. Provide Commerce, Inc.* (2016) 245 Cal.App.4th 855, 862 (*Long*).) " ' "[M]utual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract." ' [Citation.]" (*Long,* at p. 862.) " 'Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. The parties' outward manifestations must show that the parties all agreed 'upon the same thing in the same sense.' If there is no evidence establishing a manifestation of assent to the 'same thing' by both parties, then there is no mutual consent to contract and no contract formation." (*Herzog,* at pp. 1293-1294.) The recent authorities discussing the formation of a contract in the online context are relevant here because the subject arbitration agreement in the handbook does not require a signature to manifest assent, but rather, states that the vehicle owner manifests consent to the agreement merely by using the vehicle, much like many website arbitration agreements. (See Ameripour Dec. at Ex. 3 [Handbook, p. 14].)

To be sure, signing an arbitration agreement is one manner of manifesting consent (see *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 850), but it is not the only manner. " '[I]t is not the presence or absence of a *signature* which is dispositive; it is the presence or absence of evidence of an *agreement* to arbitrate which matters.' [Citation.] Evidence confirming the existence of an agreement to arbitrate, despite an unsigned agreement, can be based, for example, on 'conduct from which one could imply either ratification or implied acceptance of such a provision.' " (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 176.) For example, "[w]hen an employee continues his or her employment after notification that an agreement to arbitration is a condition of continued employment, that employee has impliedly consented to the arbitration agreement." (*Diaz v. Sohnen Enterprises* (2019) 34 Cal.App.5th 126, 130.)

Assent, however, requires notice. (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 944 (*Blizzard*); *Stover v. Experian Holdings, Inc.* (9th Cir. 2020) 978 F.3d 1082, 1086 ["notice—actual, inquiry, or constructive—is the touchstone for assent to a contract"]; see *Herzog, supra,* 101 Cal.App.5th at pp. 1293-1294; *Weeks v. Interactive Life Forms, LLC* (2024) 100 Cal.App.5th 1077, 1089.) "[I]n the absence of actual notice, a manifestation of assent may be inferred from the consumer's actions … but any such action must indicate the parties' assent to the *same thing*, which occurs only when the [provider] puts the consumer on constructive notice of the contractual terms." (*Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 461 (*Sellers*); accord, *Herzog*, at p. 1294.)

"[W]hether the terms appear on a physical piece of paper or a computer screen, 'California law is clear—"an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious." ' [Citation.]" (*Sellers, supra,* 73 Cal.App.5th at p. 461; accord, *Herzog, supra,* 101 Cal.App.5th at pp. 1293-1294; *Long, supra,* 245 Cal.App.4th at p. 862.)

Here, nothing shows Hyundai put Plaintiff on notice of the arbitration agreement within the approximately 46-page "Owner's Handbook and Warranty Information" booklet prior to plaintiff's purchase of the vehicle, and nothing from its cover suggests it contains an arbitration agreement to which plaintiff's assent will be deemed merely by driving the vehicle off the lot. (See Ameripour Dec. at Ex. 3.) The fact that the arbitration agreement appears in the "*owner's* handbook" indicates plaintiff would have had no reason to discover it until sometime after he had already become the “owner” of the vehicle and unwittingly assented to the agreement by driving it; and nothing suggests plaintiff would have had reason to reference the “warranty information” booklet within the first 30 days of ownership, such that he should have discovered the arbitration agreement in time to opt out. Without any such notice, there can be no assent. (*B.D. v. Blizzard Entertainment, Inc., supra,* 76 Cal.App.5th at p. 944; *Stover v. Experian Holdings, Inc., supra,* 978 F.3d at p. 1086 [“notice—actual, inquiry, or constructive—is the touchstone for assent to a contract”]; *Herzog, supra,* 101 Cal.App.5th at pp. 1293-1294; *Weeks v. Interactive Life Forms, LLC, supra,*100 Cal.App.5th at p. 1089.)

Defendant has therefore failed to demonstrate plaintiff’s assent to the arbitration agreement.

Defendant contends plaintiff is nevertheless equitably estopped from denying the existence of the arbitration agreement because he relies on the warranty in the handbook as a basis for his claims. In the arbitration context, “[w]hen a plaintiff brings a claim which relies on contract terms against a defendant, the plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement.” (*JSM Tuscany, LLC v. Superior Court* (2011) 193 Cal.App.4th 1222, 1239.) “The rule applies to prevent parties from trifling with their contractual obligations.” (*Turtle Ridge Media Group, Inc. v. Pacific Bell Directory* (2006) 140 Cal.App.4th 828, 833.)

The problem with defendant’s reliance on equitable estoppel is twofold. First, it conflates a “warranty” with a “contract,” both of which are legal terms of art, and not necessarily the same.

Equitable estoppel requires the existence of a “<u>contract</u>.” (See, e.g., *Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887, 893 [sine qua non of equitable estoppel is plaintiff’s actual dependence on the underlying contract].) A contract is an agreement that requires mutual assent and consideration. (Civ. Code, § 1550 [contract elements; mutual assent and consideration are “essential to the existence of a contract”]; *Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1231 [“ ‘the vital elements of a cause of action based on contract are mutual assent (usually accomplished through the medium of an offer and acceptance) and consideration’ ”].)

An express warranty is an assurance of a product’s utility and performance that accompanies its purchase and, unlike a “contract,” does not require mutual assent. (See Civ. Code, § 1791.2, subd. (a) [“

		‘Express warranty’ means: (1) A written statement arising out of a sale to the consumer of a consumer good pursuant to which the manufacturer, distributor, or retailer undertakes to preserve or maintain the utility or performance of the consumer good or provide compensation if there is a failure in utility or performance; or (2) In the event of any sample or model, that the whole of the goods conforms to such sample or model.”]; *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1134 [“Express warranties may arise from sources outside a ... contract, including statements in a manufacturer’s brochure...”]; see also *Gavaldon v. DaimlerChrysler Corp.* (2004) 32 Cal.4th 1246, 1258-1259 [holding service contracts and express warranties are mutually exclusive, explaining “an express warranty” is “part of the purchase of a consumer product, and a representation of the fitness of that product,” whereas the purchase of a service contract is distinct from the purchase of the product itself].) Defendant assumes the warranty in the handbook constitutes a “contract” in the traditional sense, as opposed to just an assurance of the vehicle’s utility and performance accompanying its purchase. The mere fact that defendant provided an express warranty guaranteeing the performance of the vehicle does not necessarily mean the parties executed a “contract” by which they “mutually” agreed to certain obligations—particularly those independent from and unrelated to the fitness of the product—that plaintiff is now attempting to disclaim, which is the situation that equitable estoppel is meant to address. (See *Ford Motor Warranty Cases, supra,* 317 Cal.5th at p. 1136 [with equitable estoppel, “the essential concern is whether plaintiffs are trying to enforce contractual terms beneficial to them while avoiding their own contractual agreement to arbitrate”].) Having failed to show to the warranty constitutes a “contract” to which plaintiff has mutually agreed in the first place, defendant has failed to show he should be equitably estopped from avoiding the arbitration agreement therein. (See *Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 220 [“ ‘[t]he linchpin for equitable estoppel is equity—fairness’ ”].) Further, even if Defendant had established that the warranty was a “contract,” which it has not, equitable estoppel does not apply because plaintiff’s claims do not rely on the substantive terms of the subject warranty; they rely on obligations outside the warranty imposed by statute or common law. “[U]nless a party to an arbitration agreement has used the substantive terms of that agreement as the foundation for his claims..., there is no reason in equity why he should be forced to arbitrate his claims....” (*Ford Motor Warranty Cases, supra,* 17 Cal.5th at p. 1137.) “It is not enough that the complaint ... includes claims that ‘ “presum[e] the

existence of" ' such an agreement. [Citation.] Instead, the causes of action ... must be ' "intimately founded in and intertwined" with the underlying contract obligations.' [Citation.] Indeed, there must be 'actual reliance on the terms of the agreement' [citation], and the causes of action must premise liability on 'duties imposed by the agreement" itself [citation]." (*Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196, 1207-1208.)

Plaintiff has alleged three causes of action in this case against Defendant for (1) violation of the Song-Beverly Act – breach of express warranty, 2) violation of the Song-Beverly Act – breach of implied warranty, 3) violation of Business and Professions Code § 17200. The first two claims allege various violations of the Song-Beverly Act, which imposes certain statutory obligations on manufacturers who make express warranties. The third cause of action alleges Defendant committed unfair, unlawful, and fraudulent conduct in violation of California's Unfair Competition Law.

"Manufacturers may ... make express warranties, which trigger various statutory provisions covering notice and repair or replacement of nonconforming goods. (See Civ. Code, § 1793 et seq.)" (*Ford Motor Warranty Cases, supra,* 17 Cal.5th at pp. 1133-1134.) These obligations are not terms of the warranties themselves but "are imposed by statute." (*Ibid.*) Plaintiff's first cause of action is based on defendant's violations of these statutory obligations—i.e., the failure to promptly provide restitution—rather than a term of the warranty itself. (Civ. Code, § 1793.2, subds. (a)(3), (b), (d); see Complaint, ¶¶ 9-21.) The second cause of action arises from a breach of the implied warranty of merchantability, which "arises by operation of law." (*Ford Motor Warranty Cases,* at p. 1134; see Complaint, ¶¶ 23-30.) None of these claims "premise liability on 'duties imposed by the agreement' itself...." (*Ballesteros v. Ford Motor Co., supra,* 109 Cal.App.5th at pp. 1207-1208.) Therefore, even if the warranty was a "contract" in the traditional sense (which again, Defendant has not shown), equitable estoppel does not apply because plaintiff's claims do not rely on the substantive terms of the warranty itself.

Accordingly, the motion is denied to the extent it is based on the arbitration agreement in the Owner's Handbook.

<u>The Connected Services Agreement (CSA)</u>

Defendant also seeks to compel arbitration pursuant to the CSA, which it contends is broad enough to cover plaintiff's claims in this action.

Defendant has met its burden of demonstrating the existence of the arbitration agreement in the CSA but has failed to show its scope covers plaintiff's Song-Beverly claims.

First, with respect to the existence of the arbitration agreement in the CSA—as noted above, state contract law governs the rights of parties to enforce an arbitration agreement. To resolve this inquiry, the court applies a three-step burden shifting process. (See *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 (*Gamboa*); see also *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51 [applying three-step burden shifting process, noting "[e]ven when an agreement provides that it is governed by the FAA, courts must first apply state law principles in determining whether the parties entered into an agreement to arbitrate"].)

On the first step, "the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.' [Citation.]" (*Gamboa, supra,* 72 Cal.App.5th at p. 165.) To meet this burden, the moving party can " 'attach[ ] to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.' [Citation.] Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. [Citations.]" (*Ibid.*; accord, *Iyere, supra,* 87 Cal.App.5th at p. 755.) At this step, the movant need not follow the normal procedures of document authentication. (*Iyere,* at p. 755; *Gamboa,* at p. 165.) On the second step, "[i]f the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence" through admissible evidence. (*Iyere,* at p. 755; *Gamboa,* at p. 165.) On the third step, "[i]f the opposing party meets its burden of producing evidence, ... the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (*Gamboa,* at p. 165; *Iyere,* at p. 755.)

Defendant has met its initial burden of producing "prima facie evidence" of the existence of the CSA by setting forth the agreement's provisions. (See Rao Dec. ¶¶ 2-6, Ex. 2; see also *Iyere, supra,* 87 Cal.App.5th at p. 755; *Gamboa, supra,* 72 Cal.App.5th at p. 165.) Plaintiff has not presented any evidence disputing the existence of the CSA. As such, the burden-shifting process stops here, and defendant need not produce any further evidence to authenticate the document. (See *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, 837.)

		As for the scope of this arbitration provision—the CSA governs plaintiff's "Connected Services," i.e., certain wireless/GPS, stolen vehicle, and roadside assistance services, and plaintiff's "Service Plan" for the same. (Rao Dec. at Ex. 2.) The arbitration provision in the CSA is extremely broad and reads, in relevant part: > Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services, Connected Services Systems, Service Plans, the Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law. However, any dispute you or we may have relating to copyrights or other intellectual property shall not be governed by this agreement to arbitrate. For the avoidance of doubt, this means that any claims you or we may have relating to intellectual property rights against the other, including injunctive and other relief sought, may be brought in a court of competent jurisdiction. The agreement to arbitrate otherwise includes, but is not limited to: [¶] claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; claims that arose before this or any prior Agreement (including, but not limited to, claims relating to advertising); claims that are currently the subject of purported class action litigation in which you are not a member of a certified class; claims relating to the Vehicle for which you seek product or service support via the sites; claims arising out of or relating to the Telephone Consumer Protection Act; claims relating to your data privacy or information security; and claims that may arise after the termination of this Agreement. > For purposes of this arbitration provision, references to "Hyundai," "you," and "us" shall include our respective parent entities, subsidiaries, affiliates, agents, employees, predecessors in interest, successors and assigns, websites of the foregoing, as well as all authorized or unauthorized users or beneficiaries of services, products or information provided

		or made available under this or prior Agreements between us relating to or arising from any aspect of your use of the Connected Services, Connected Service Systems, Service Plans, the Vehicle or access of the sites. Notwithstanding the foregoing, either party may bring an individual action in small claims court. You agree that, by entering into this Agreement, you and Hyundai are each waiving the right to a trial by jury or to participate in a class or representative action to the maximum extent permitted by law. ... (Rao Dec. at Ex. 2.) Although this arbitration provision purports to cover any and all disputes between the parties regarding "the Vehicle," the scope of an arbitration clause " 'turns on whether the ... claims are "rooted" in the contractual relationship between the parties….' " (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 692.) To be arbitrable, the subject claims must have their "roots" in the relationship between the parties that was created by the contract containing the arbitration provision. (*Id.* at pp. 692-693.) "[E]ven under a very broad arbitration provision, such as 'any controversy or claim arising out of or relating to this agreement,' " the subject claims must " ' "have their roots in the relationship between the parties which was created by the contract" ' before they can be deemed to fall within the scope of the arbitration provision." (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 188.) Here, the CSA governs the provision of "Connected Services," the wireless/remote technology/roadside assistance services received as part of plaintiff's enrollment in a "Connected Services" subscription. (Rao Dec. at Ex. 2.) The complaint in this case alleges the vehicle contained defects and nonconformities to warranty. (See Complaint.) The "Connected Services" are not at issue in this case and plaintiff's claims do not arise out of the relationship created by the CSA. As such, the arbitration agreement in the CSA does not encompass plaintiff's claims. (*Ahern v. Asset Management Consultants, Inc.,*74 Cal.App.5th at p. 692; *Rice v. Downs, supra,* 248 Cal.App.4th at p. 188.) Accordingly, the motion is denied. Plaintiff shall give notice of this ruling.

5	Walsh vs. Arzetti	**TENTATIVE RULING:** **<u>Motion to Compel Arbitration</u>** Defendants Alex Arzetti and Melissa Alumirano move to compel Plaintiffs Andrew Walsh and Mary Ann Walsh to arbitrate their claims against Defendants and stay this action pending completion of arbitration. For the following reasons, the unopposed motion is GRANTED. Plaintiffs allege Defendants breached a "Buyer's Exclusive Representation Agreement" (the "Agreement") by purchasing property in July 2020 without paying a commission. The Agreement contains an arbitration provision: > ARBITRATION OF DISPUTES: (1) Buyer and Broker agree that any dispute or claim in law or equity arising between them regarding the obligation to pay compensation under this Agreement, which is not settled through mediation, shall be decided by neutral, binding arbitration, including and subject to paragraph 9B(2) below. The arbitrator shall be a retired judge or justice, or an attorney with at least five years of residential real estate law experience, unless the parties mutually agree to a different arbitrator, who shall render an award in accordance with substantive California law. The parties shall have the right to discovery in accordance with Code of Civil Procedure §1283.05. In all other respects, the arbitration shall be conducted in accordance with Title 9 of Part Ill, of the California Code of Civil Procedure. Judgment upon the award of the arbitrator(s) may be entered in any court having jurisdiction. Interpretation of this agreement to arbitrate shall be governed by the Federal Arbitration Act. (2) EXCLUSIONS FROM MEDIATION AND ARBITRATION: The following matters are excluded from mediation and arbitration: (i) a judicial or non-judicial foreclosure or other action or proceeding to enforce a deed of trust, mortgage or installment land sale contract as defined in Civil Code §2985; (ii) an unlawful detainer action; (iii) the filing or enforcement of a mechanic's lien; and (iv) any matter that is within the jurisdiction of a probate, small claims or bankruptcy court. The filing of a court action to enable the recording of a notice of pending action, for order of attachment, receivership, injunction, or other provisional remedies, shall not constitute a waiver of the mediation and arbitration provisions.

> “NOTICE: BY INITIALING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE "ARBITRATION OF DISPUTES' PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW. YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR JURY TRIAL. BY INITIALING IN THE SPACE BELOW YOU ARE GIVING UP YOUR JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOSE RIGHTS ARE SPECIFICALLY INCLUDED IN THE 'ARBITRATION OF DISPUTES' PROVISION. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF THE CALIFORNIA CODE OF CIVIL PROCEDURE. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY.”
> “WE HAVE READ AND UNDERSTAND THE FOREGOING AND AGREE TO SUBMIT DISPUTES ARISING OUT OF THE MATTERS INCLUDED IN THE ‘ARBITRATION OF DISPUTES' PROVISION TO NEUTRAL ARBITRATION.”

(Complaint, Ex. A.)

<u>Federal Arbitration Act</u>

The Federal Arbitration Act (“FAA”), which includes both procedural and substantive provisions, governs agreements involving interstate commerce. The Agreement at issue in this matter expressly states that the FAA applies. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

The FAA states that written arbitration agreements ”shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (*AT & T Mobility LLC v.* Concepcion (2011) 563 U.S. 333.) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (*Id*.) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern

		the formation of contracts." (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944.) On a motion to compel arbitration, the court's role is limited to deciding: "(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute." (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; *Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218 ["By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration."].) "[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration." (*Green Tree Fin. Corp. v. Randolph* (2000) 531 U.S. 79, 91.) **<u>The Agreement Covers the Claim Asserted by Plaintiffs</u>** Defendants have met their burden of demonstrating the existence of a valid arbitration agreement with Plaintiff decedent. (Complaint, Ex. A.) In covering "any dispute or claim in law or equity arising between them regarding the obligation to pay compensation under this Agreement," the Agreement covers Plaintiffs' claims against Defendants. Accordingly, the Motion to Compel Arbitration is GRANTED, and the action is STAYED pending the completion of arbitration. (Code Civ. Proc. § 1281.4.) An ADR Review Hearing is set for 9:00 a.m. on October 20, 2026, in Department N16. Defendants shall give notice of this ruling.
6	Activate Clean Energy, LLC vs. DMX Engineering, LLC	**TENTATIVE RULING:** **<u>Motion for Pro Hac Vice Admission</u>** Attorney Dwyer Arce moves for pro hac vice admission. For the following reasons, the motion is GRANTED. Foreign attorney Arce's application is verified. It properly sets forth the applicant's residence and office addresses and California counsel's contact information. It states the applicant's courts and

		dates of admission and attests to her good standing. The application states Attorney Arce has submitted three applications in the last two years. The motion has been served on the State Bar of California at its San Francisco address and Attorney Abed attests that the application fee has been paid. (Cal. Rules Ct., Rule 9.40(c)-(e).) The moving attorney to give notice.
7	Code 4 Media Group, Inc. vs. Kim	**OFF CALENDAR**
8	Ha vs. Nguyen	**TENTATIVE RULING:** For the reasons set forth below, Defendant Anh Quang Nguyen's motion to set aside default is GRANTED. Defendant's motions to quash service of summons are restored and set for hearing on September 30, 2026, at 9:00 a.m. in this Department. **<u>Violation of Cal. R. Ct., rule 3.1113, subd. (d)</u>** As a preliminary matter, Defendant's motion violates Cal. R. Ct., rule 3.1113, subd. (d), which provides that "[e]xcept in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages." Defendant's motion is 20 pages. However, the court will exercise its discretion to proceed on the merits. **<u>Procedural History</u>** The instant motion was previously set for 11/12/25. This court tentatively granted the motion on the grounds that Plaintiffs failed to oppose. However, Plaintiffs filed an Opposition and Declaration on 11/12/25 stating that they were never served with the instant motion despite the proof of electronic service. Plaintiffs argue in their Opposition that Defendant's failure to serve the motion denied Plaintiffs a meaningful opportunity to respond, and requested that the court continue the motion and allow Plaintiffs to file a full written opposition. The court continued the motion. Default was entered against Defendant on 9/6/24. Defendant moves to set aside entry of default pursuant to Code Civ. Proc. § 473, subds. (b) and (d).

Statement of Law

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

"The court may relieve a party from a judgment entered against it through its 'mistake, inadvertence, surprise or excusable neglect.' [Citation.] But the motion under this section must be made within six months from the entry of the default or the default judgment." (*Sporn v. Home Depot USA, Inc.* (2005) 126 Cal.App.4th 1294, 1299.)

"The six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief made after that period has elapsed. [Citation.] The six-month period runs from entry of default, not entry of judgment. [Citation.]" (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42; see *Kramer*, *supra*, (2020) 56 Cal.App.5th 13, 39 ["The six-month period for granting relief under section 473, subdivision (b), 'runs from entry of default, not entry of judgment' "].)

Defendant filed this motion on 6/30/25, well after the six-month deadline. Accordingly, relief pursuant to Code Civ. Proc. § 473, subd. (b) is untimely.

In the alternative, Defendant moves for relief pursuant to Code Civ. Proc. § 473, subd. (d), on the basis that the judgment is void, as Defendant had filed a motion to quash on the same day that default was entered.

Code of Civil Procedure Section 473, subdivision (d), provides that: "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (*See* Code Civ. Proc., § 473, subd. (d)).

		Defendant contends that he was served on 8/8/24 (though he contests that service was proper) and filed his motion to quash on 9/6/24. Default was entered that same day, on 9/6/24, and Defendant contends that default was entered in violation of Code Civ. Proc. § 418.10, subd. (d), which provides: "No default may be entered against the defendant before expiration of his or her time to plead." However, the proof of service provides that Defendant was personally served with the complaint, summons, ADR package and civil case cover sheet on 7/17/24. (See POS [ROA 12]). Therefore, this argument fails. Defendant also argues that Defendant filed his motion to quash (he filed two, one in person and one electronically) the same day that the default was entered. He argues that his motions to quash were either still pending or not yet administratively processed when the default was entered. Plaintiffs did not address this argument in their Reply. The only arguments Plaintiffs present against Code Civ. Proc. § 473, subd. (d) is that there is a valid proof of service on file, that Defendant was actually served, and that a self-serving denial of receipt does not rebut that presumption of proper service. While these may be proper arguments in opposition to the motion to quash, Plaintiffs do not address the <u>timing</u> of the filing of the motion to quash and whether the filing precluded Plaintiffs from obtaining default. It is axiomatic that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Sup. Ct*. (2000) 78 Cal.App.4th 562, 566 ("By failing to argue the contrary, plaintiffs concede this issue"); *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 ("failure to address the threshold question . . . effectively concedes that issue and renders its remaining arguments moot"); *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 (issue is impliedly conceded by failing to address it).) Accordingly, the motion is granted. Defendant shall give notice.
9	Irvine Westpark Plaza LLC vs. Diesel 1 LLC	**TENTATIVE RULING:** Counsel Constantine Panagotacos and James Higgins of Dunn & Panagotacos LLP move to be relieved as counsel for the following Defendants: Diesel 1 LLC, 100 Percent Health Management, LLC,

		Nigel Stobart, Kim Stobart, Brandon Livingood, and Rebecca Livingood. For the reasons set forth below, the court CONTINUES the motion to August 19, 2026, at 9:00 a.m. in this Department. The court is inclined to grant the motions. However, the motions set forth the hearing dates of August 19, 2026, August 26, 2026, and September 2, 2026, and there is nothing in the record showing that notice of the advanced hearing date of 6/17/26 was provided to Defendants. Accordingly, the court orders Moving Counsel to give notice of the new hearing date for the instant motions. The court also orders Moving Counsel to file and serve new proposed orders reflecting the new pretrial conference and trial dates in Paragraphs 7 and 9 of the Orders (MC-053). Moving counsel shall give notice of the continued hearing date, including to the clients and all other parties who have appeared in the action, in compliance with Code Civ. Proc. § 1005, and file the proof of service of the notice at least five court days before the continued hearing date. Moving counsel to give notice.
10	Jas Partnership vs. Convirgent Technologies LLC	**TENTATIVE RULING:** For the reasons set forth below, Defendant and Cross-Complainant Convergint Technologies LLC's motion to continue trial is GRANTED. Trial is continued to April 5, 2027, at 9:00 a.m. in this Department. The pretrial conference is continued to April 2, 2027, at 9:00 a.m. in this Department. The discovery and motion deadlines are continued pursuant to Code Civ. Proc. § 2024.020. **<u>Statement of Law</u>** "A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application under the rules in chapter 4 of this division, with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the

continuance is discovered.” (Cal. Rules of Court, rule 3.1332(b); *Reales Investment, LLC v. Johnson* (2020) 55 Cal.App.5th 463, 468.)

The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;
(2) The unavailability of a party because of death, illness, or other excusable circumstances;
(3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;
(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;
(5) The addition of a new party if:
(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or
(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;
(6) A party’s excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or
(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

(Cal. Rules of Court, rule 3.1332(c)).

In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

(1) The proximity of the trial date;
(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;
(3) The length of the continuance requested;
(4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;
(5) The prejudice that parties or witnesses will suffer as a result of the continuance;
(6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;
(7) The court’s calendar and the impact of granting a continuance on other pending trials;

		(8) Whether trial counsel is engaged in another trial; (9) Whether all parties have stipulated to a continuance; (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and (11) Any other fact or circumstance relevant to the fair determination of the motion or application. (Cal. Rules of Court, rule 3.1332(d). **<u>Merits</u>** The court finds that Convergint has shown good cause for a continuance for the trial date pursuant to Cal. Rules of Court, rule 3.1332(c). Convergint contends that it served its first sets of discovery, including special interrogatories, requests for production of documents, requests for admission and form interrogatories, on 10/22/25. (Decl. of Jackson, ¶ 2). After seeking several extensions, JAS served its written responses to Convergint's written discovery on 12/16/25. (Decl. of Jackson, ¶ 9). Convergint contends that JAS' responses are replete with baseless objections as JAS refuses to disclose any information regarding any of the critical issues in this case, including its unpermitted improvements and systems maintenance history. (Decl. of Jackson, ¶ 9). Convergint filed four motions to compel (which were sent to an informal discovery conference) and contends that it is unable to complete discovery, take depositions or file a motion for summary judgment. JAS contests the basis for these discovery motions and contends that it produced over 2,000 documents and that Convergint's requests were poorly worded. Nevertheless, the hearing date for the four motions is not until 7/2/26. Furthermore, this matter commenced 4/18/25, and this is the first request for a continuance. JAS Partnership has not shown that it will be prejudiced as a result of the continuance. Accordingly, the motion is GRANTED. Convergint shall give notice.

11	McGovern vs. Kerr	**TENTATIVE RULING:** **<u>Anti-SLAPP Motions to Strike</u>** Harry McGovern ("Harry") and Megan McGovern ("Megan") move to strike the Cross-Complaint filed by Cross-Complainants Summer Kerr ("Summer"), Kathleen Constance ("Kathleen"), and Skyler Kerr ("Skyler") pursuant to Code Civ. Proc. § 425.16. Erika Shawver also moves to strike the Cross-Complaint pursuant to Code Civ. Proc. § 425.16. For the following reasons, the motions are GRANTED. **Statement of Law** Code Civ. Proc. § 425.16 provides in relevant part: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." This section is to be construed broadly. Cal. Code Civ. Proc. § 425.16(a). The court's determination of an anti-SLAPP motion is a two-step process. First, the court determines if the party moving to strike a cause of action has met its initial burden to show that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. Then, if the court determines that showing has been made, the court determines whether the opposing party has demonstrated a probability of prevailing on the claim. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.) **<u>Step One: Protected Speech</u>** The Cross-Complaint asserts causes of action for 1) defamation – libel, 2) defamation – slander, 3) intentional infliction of emotional distress, and 4) negligent infliction of emotional distress. Cross-Defendants Harry McGovern ("Harry") and Megan McGovern ("Megan") did not provide a declaration in connection with their motion, so the Court is left only to the allegations of the unverified First Amended Complaint and the unverified Cross-Complaint. (See, e.g., Civ. Proc. Code § 425.16, subd. (b)(2) [noting that the court, "in making its determination [whether the plaintiff's cause of action is

subject to an anti-SLAPP motion], shall consider the pleadings and supporting and opposing affidavits stating the facts on which the liability or defense is based."]; *Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 928–929 ["When the complaint itself alleges protected activity, a moving party may rely on the plaintiff's allegations along in arguing that the plaintiff's claims arise from an act 'in furtherance of the person's right of petition or free speech.'"].)

According to the First Amended Complaint ("FAC"), Harry and Megan are parents of a minor child Jane Roe. On January 31, 2023, they hired Summer Kerr ("Summer") as a babysitter. Summer assisted in watching the children in Harry and Megan's home, but after gaining their trust, Summer was permitted to take Jane Roe to a nearby park and certain authorized locations. (FAC, ¶ 8.) However, Defendants Summer, Kathleen Constance, and Skyler Kerr took Jane Roe to the homes of male predators who then physically and sexually abused Jane Roe. (Id. at ¶¶ 8-9.)

The Cross-Complaint alleges that Summer received a threatening voicemail and text messages from Harry on August 31, 2024, in which he stated in part, "There will be no place that you could hide on this planet for the hell that I'm gonna bring over you and your family and everyone else involved." (Cross-Complaint, ¶ 11.) Summer returned that call and Harry told Summer that she was going to spend the rest of her life in jail. (Id. at ¶ 12.) Between November 2024 and January 2025, Summer was informed that Megan and Harry had been telling neighbors and friends that Summer was a child molester and child trafficker. (Id. at ¶ 16.) Cross-Complainants allege these statements were false. (Id. at ¶¶ 18-19.)

The first cause of action does not name Harry and Megan as Cross-Defendants. Harry and Megan are only named in the second, third, and fourth causes of action.

The second cause of action for slander alleges Cross-Defendants made the statements alleged in the Cross-Complaint to third parties who understood those statements to be about Cross-Complainants and that Cross-Complainants had committed crimes against children. (Cross-Complaint, ¶¶ 31-33.)

As indicated previously, Code Civ. Proc. § 425.16 protects "any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest." (Code Civ. Proc. § 425.16(e)(3).) The Cross-Complaint alleges that Megan and Harry "had been telling individual neighbors and friends that Summer was a child molester and child trafficker." (Cross-

		Complaint, ¶ 16.) The FAC alleges that Plaintiffs had reported Defendants' conduct to the police and an investigation is ongoing. (FAC, ¶ 20.) The Court finds that Harry and Megan's statements constitute protected activity under Section 425.16, subdivisions (e) because they were statements "in furtherance of [their] constitutional rights of freedom of speech . . . in connection with a public issue" (Code of Civ. Proc. § 425.16, subd. (b)(1).) "The law is that communications to the police are within SLAPP." (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, citing *Walker v. Kiousis* (2001) 93 Cal.App.4th 1432, 1439 [complaint to police is "made in connection with an official proceeding authorized by law."].) In *Comstock v. Aber*, the defendant made allegations of sexual assault against the plaintiff to three groups of people: (1) the police, (2) a nurse, and (3) 'friends.' (Id. at 941.) Therein the Court held that all three statements fell within the anti-SLAPP protections of section 425.16. (Id. at pp. 941- 942.) Child molestation or child abuse is an issue of public concern. (*Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 483 ["[A]llegations of abuse by members of the clergy and the protection of children concern issues of public interest."]; see also *Cross v. Cooper* (2011) 197 Cal.App.4th 357, 371–379 [discussing cases; holding that disclosure about a registered sex offender living in the neighborhood constituted protected speech in connection with an issue of public interest].) Harry and Megan's alleged statements that Summer was a child molester or child trafficker touched on an issue of public concern. The third cause of action for intentional infliction of emotional distress is based entirely on the same conduct as the second cause of action for defamation. (Cross-Complaint, ¶ 39 ["The conduct of Cross-Defendants as alleged herein was extreme and outrageous."].) The same goes for the fourth cause of action for negligent infliction of emotional distress. (Cross-Complaint, ¶ 44 ["Cross-Defendants were negligent in making the statements alleged herein."].) Harry and Megan have met their threshold burden of showing that the Cross-Complaint's causes of action against them arise from an act in furtherance of Harry and Megan's protected conduct. The analysis is similar as to Cross-Defendant Erika Shawver ("Shawver"). The Cross-Complaint alleges only one fact specifically directed at Shawver: "Winslow published false and defamatory

		statements about Summer to third parties through a Facebook group called San Clemente Moms, which is moderated and administered by Erika Shawver." (Cross-Complaint, ¶ 15.) In other words, the only specific allegation made against Shawver in the Cross-Complaint is that she moderates and administers a Facebook group called San Clemente Moms, in which group Cross-Defendant Fallon Winslow posted something that included a picture of Cross-Complainant Summer, but the post was removed approximately one day after a request to remove it was submitted. (Id. at ¶¶ 13-14.) The Cross-Complaint does not allege the content of the post other than the fact that it included a picture of Summer. (Ibid.) "It cannot be disputed that Facebook's website and the Facebook pages at issue are 'public forums,' as they are accessible to anyone who consents to Facebook's Terms." (*Cross v. Facebook, Inc.* (2017) 14 Cal.App.5th 190, 199.) Further, the Facebook post at issue contained content in some way related to the allegations of misconduct regarding Cross-Complainants and Jane Doe. (Cross-Complaint, ¶ 25 ["These third parties reasonably understood that the statements were about Cross-Complainants."].) As discussed previously, the analysis is the same with respect to the third cause of action for intentional infliction of emotional distress and the fourth cause of action for negligent infliction of emotional distress. Thus, Shawver has met her threshold burden of showing that the Cross-Complaint's causes of action against her arise from an act in furtherance of Shawver's protected conduct. Cross-Complainants now must establish a probability of prevailing on their claims. **Step Two: Probability of Prevailing** Once the Cross-Defendants have met their burden, the burden shifts to the Cross-Complainants to establish that there is a probability it will prevail on their claims. (Code Civ. Proc. § 425.16(b)(1); *Taus v Loftus* (2007) 40 C4th 683, 713; *Equilon Enters. v Consumer Cause, Inc*. (2002) 29 C4th 53, 67.) "Probability" means "reasonable probability." (*Schoendorf v U.D. Registry, Inc*. (2002) 97 CA4th 227, 238.) To meet this burden, the Cross-Complainants must show that the complaint is legally sufficient and supported by a prima facie showing, by admissible and competent evidence, of facts that would be sufficient to sustain a favorable judgment on the Cross-Complainants' claims under the applicable evidentiary standard.

		Cross-Complainants did not oppose the motions and thus failed to meet their burden to establish there is a probability they will prevail on their claims. Thus, the motions are granted. **Attorney's Fees** With exceptions that do not appear to apply here, a prevailing moving party on an anti-SLAPP motion is entitled to recover attorney's fees and costs. (Civ. Pro. Code, § 425.16(c)(1).) Harry and Megan seek an award of attorney's fees and costs in the amount of $11,560, which is composed of 14.6 hours at an hourly rate of $500 for attorney Raquel Flyer Dachner, 6 hours at an hourly rate of $700 for attorney David Flyer, and a $60 filing fee. Cross-Complainants are ORDERED to pay attorney's fees and costs in the amount of $9,560 to Harry and Megan. The amount requested by Harry and Megan was reduced for a variety of reasons, including that the motion was not opposed, and that the time spent was not entirely justified. The amount awarded consists of 12 hours at an hourly rate of $500 and 5 hours at an hourly rate of $700, plus the $60 filing fee. Shawver seeks an award of attorney's fees and costs in the amount of $3,680, which is composed of 7 hours at an hourly rate of $455 (including two hours to reply and argue the motion), a $60 filing fee, and a first appearance fee of $435. The recommendation is to reduce the time spent from 7 to 6 hours because the motion is unopposed but otherwise grant this request. Thus, Cross-Complainants are ORDERED to pay attorney's fees and costs in the amount of $3,225 to Shawver. Moving Parties shall each give notice of this ruling.
12	Cardona vs. Volkswagen Group of America, Inc.	**TENTATIVE RULING:** For the reasons set forth below, Defendant Volkswagen Group of America, Inc.'s ("Volkswagen") Motion for Summary Adjudication as to the first cause of action for Breach of Express Warranty – Pursuant to California Commercial Code is DENIED. Volkswagen's Motion for Summary Adjudication as to the Prayer for Relief "for Civil Penalties in the amount of $246,054.06" is GRANTED.

Defendant Unstoppable Automotive Group, LLC dba Audi Mission Viejo's ("Audi Mission Viejo") Motion for Summary Adjudication as to the third cause of action for Violation of Song-Beverly Act – Breach of Implied Warranty, and the fourth cause of action for Negligent Repair, are DENIED.

Defendants' evidentiary objections to paragraphs 3 and 5-11, as well as Exhibits A, C, and D, to the Declaration of Michael William Oppenheim are OVERRULED.

Statement of Law

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc., § 437c, subd. (c); *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 876.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1); *R.J. Land & Associates Construction Co. v. Kiewit-Shea* (1999) 69 Cal.App.4th 416, 424.)

"A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

"First, and generally, from commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1213-1214.) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

"Second, and generally, the party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord, *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 876-877; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1214; Code Civ. Proc., § 437c, subd. (p)(1) [plaintiff meets its burden by proving each element of its cause of action].) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851.)

<u>Breach of Express Warranty – Pursuant to California Commercial Code</u>

Volkswagen contends the first cause of action – for Breach of Express Warranty Pursuant to California Commercial Code – fails because it requires privity between the buyer and the seller, yet Volkswagen did not sell Plaintiffs the subject vehicle, and it did not

		extend any warranties to Plaintiffs in connection with the sale. (Lewis Declaration, ¶¶ 3-8; Exhibits A-B to Lewis Declaration; Kraft Declaration, ¶¶ 3-4; Exhibit A to Kraft Declaration; Espinosa Declaration, ¶ 2; Exhibit A to Espinosa Declaration.) However, the Court of Appeal for the Fourth District, Division Two, remarked that, while the Song-Beverly Consumer Warranty Act may not apply to used vehicles that was only accompanied by a balance of the original warranty, "the beneficiary of a transferrable express warranty can sue a manufacturer for breach of an express warranty to repair defects under the California Uniform Commercial Code. [Citations.]" (*Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 225; accord, *Leon v. Volkswagen Group of America, Inc.* (C.D. Cal., June 27, 2025, No. 2:24-CV-03863-SPG-MAA) 2025 WL 1843211, at *2; see *Grismore v. Mercedes-Benz USA, LLC* (C.D. Cal. 2024) 710 F.Supp.3d 828, 837 [while a consumer who leased a used vehicle cannot recover against the manufacturer under the Song-Beverly Consumer Warranty Act, it can sue the manufacturer under the California Uniform Commercial Code].) And here, Volkswagen admits that, when Plaintiffs acquired the subject vehicle, it retained the balance of the New Vehicle Limited Warranty. (Lewis Declaration, ¶¶ 4, 6.) Since Volkswagen did not meet its initial burden, there remains a triable issue of material facts as to Defendants' Material Fact nos. 1-5. Thus, the Court shall deny the Motion for Summary Adjudication as to the First Cause of Action. **<u>Violation of Song-Beverly Act – Breach of Implied Warranty</u>** Audi Mission Viejo seeks summary adjudication of the third cause of action, arguing that the breach of implied warranty claim fails because Plaintiffs cannot show the vehicle was unfit for ordinary use, and also because Plaintiffs did not present the subject vehicle for inspection or repair of said defects within the first three months of ownership. (Lewis Declaration, ¶¶ 3, 5, 9-10; Exhibits A, B, D to Lewis Declaration; Kraft Declaration, ¶¶ 3, 4, 7, 8; Exhibits A & B to Kraft Declaration; Espinosa Declaration, ¶ 2; Exhibits A-C to Espinosa Declaration.) However, "[t]he Song–Beverly Act does not include its own statute of limitations. [Citation.] California courts have held that the statute of limitations for an action for breach of warranty under the Song–Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial

		Code: section 2725 of the Uniform Commercial Code. [Citations.] Under this statute, '(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued.... [¶] (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.' [Citation.]" (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305–1306.) The *Mexia* court held that the statute of limitations for an action for breach of the implied warranty under the Song-Beverly Act is four years, and that the earliest date the implied warranty of merchantability could have accrued was the date the plaintiff purchased the used boat, such that his action, which was filed more than three-and-a-half years after purchase, was not barred by the statute of limitations. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306; see *Reniger v. Hyundai Motor America* (N.D. Cal. 2015) 122 F.Supp.3d 888, 902-905 [following *Mexia* in holding that latent defects that may have existed at the time of purchase, but which were not discovered until after the warranty period, are not time-barred where the complaint was filed within the four-year statute of limitations].) In *Mexia*, the defendants argued, among other things, that the used boat was fit for its ordinary purpose since the plaintiff did not seek repair until over two years from the time of purchase. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1308.) The defendants also argued that the duration provision of the statute precluded an action for breach of the implied warranty of merchantability under the Song-Beverly Act when the action is based on a latent condition that was not discovered by the consumer, and that was not reported to the seller, within the duration period. (*Id.* at pp. 1308-1309.) The defendants' position was rejected, as their interpretation of the duration provision had no support in the text of the statute, and there was nothing to suggest a requirement that the purchaser discover, and report to the seller, a latent defect within that time period. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1310.) "If the Legislature intended to create a deadline by which a purchaser of goods covered by the Song–Beverly Act must report a defect to the seller, it had a ready model for doing so … If the Legislature intended the duration provision to impose a deadline for consumers

to give notice of defects under the Song–Beverly Act, it could have easily done so. It did not." (*Ibid*.)

Pursuant to the holding in *Mexia*, and without even addressing whether the coolant system defect rendered the subject vehicle unfit for its ordinary purpose (see *Chiulli v. American Honda Motor Co., Inc.* (N.D. Cal. 2023) 690 F.Supp.3d 1038, 1053-1054 [defective infotainment system sufficient to assert a claim for breach of implied warranty of merchantability, even if plaintiffs continued operating the defective vehicle]), Audi Mission Viejo's Motion for Summary Adjudication of the third cause of action fails because there is a triable issue of material fact as to whether said defects existed at the time Plaintiffs purchased the vehicle, and whether said defects were undiscoverable at the time of purchase.

Contrary to its position, the fact that Plaintiffs did not present their vehicle for repair within three months does not necessarily bar their claim. (See *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1308-1310 [rejecting the defendants' contention that the used boat was fit for its ordinary purpose, and did not breach the implied warranty of merchantability, because plaintiff did not discover, report, or otherwise seek repair of the alleged latent defect, until over two years from the time of purchase].)

Since Audi Mission Viejo did not meet its initial, or its ultimate, burdens as to Material Fact nos. 6 through 9, the Court shall deny the Motion for Summary Adjudication as to the third cause of action for Violation of the Song-Beverly Act – Breach of Implied Warranty.

Negligent Repair

Audi Mission Viejo moves for summary adjudication of the negligent repair cause of action, arguing this claim is barred by the economic loss rule.

"When California courts encounter a dearth of California appellate decisions on a particular legal question, they 'often look to decisions of California federal courts and out-of-state cases in resolving' the issue. [Citation.]" (*Fourth Inv. LP v. U.S.* (9th Cir. 2013) 720 F.3d 1058, 1069.) Unpublished federal court decisions do not violate rule 8.1115 of the California Rules of Court, and they may be cited as persuasive authority. (*In re Farm Raised Salmon Cases* (2008) 42 Cal.4th 1077, 1096, fn. 18; *Olinick v. BMG Entertainment* (2006) 138 Cal.App.4th 1286, 1301, fn. 11.)

		Relevant here, numerous Federal District Courts have found the economic loss doctrine does not bar a negligent repair cause of action. (*Sabicer v. Ford Motor Company* (C.D. Cal. 2019) 362 F.Supp.3d 837, 840-842; *Luna v. Fca US, LLC* (C.D. Cal., July 31, 2020, No. 220CV2354ODWASX) 2020 WL 4383475, at *3; *Madison v. Ford Motor Company* (E.D. Cal., Aug. 6, 2019, No. 2:19-CV-00853 WBS DB) 2019 WL 3562386, at *2*; McAdams v. Ford Motor Company* (N.D. Cal., June 5, 2019, No. 18-CV-07485-LHK) 2019 WL 2378397, at *4–5*; McKeown v. Ford Motor Company* (C.D. Cal., Mar. 13, 2019, No. CV1900281CJCPLAX) 2019 WL 1199468, at *2-3; see *Cortez v. Nissan North America, Inc.* (C.D. Cal., Dec. 10, 2024, No. 2:24-CV-05909-ODW (PDX)) 2024 WL 5054378, at *6 [" 'District courts in California "have been virtually unanimous in rejecting the argument that a dealer is fraudulently joined because the economic loss rule bars a negligent repair claim" ' "].) While Audi Mission Viejo's Motion for Summary Adjudication cites to the general law regarding the economic loss rule, it did not cite to any cases that have applied said rule to negligent repair cases. However, and as discussed, Federal District Courts have overwhelmingly held that the economic loss rule does not bar a negligent repair claim. The Court finds these rulings to be persuasive, and it shall follow them in this instance. Based on the foregoing, the Court finds Audi Mission Viejo did not meet its initial burden as to its Motion for Summary Adjudication as to the fourth cause of action for Negligent Repair, such that its Motion for Summary Adjudication is denied. **<u>Civil Penalties</u>** In their First Amended Complaint's Prayer for Relief no. 3, Plaintiffs seek civil penalties against Volkswagen, for $246,054.06. (Exhibit A to Espinosa Declaration.) In their Opposition, Plaintiffs concede this request for civil penalties should be removed, as "[t]he request for civil penalties appears to have been left in the FAC during the process of amending the original complaint to become the FAC. As such, Plaintiffs do not object if the Court strikes the request for civil penalties in the prayer for relief." Since Plaintiffs concede as to this point, the Court shall grant the Motion for Summary Adjudication.

		Moving parties are ordered to provide notice of the Court's ruling.
13	Hestan Commercial Corporation vs. Purcell-Murray Company, Inc.	**TENTATIVE RULING:** For the reasons set forth below, Plaintiff Hestan Commercial Corporation's Motion for Summary Judgment or, in the Alternative, Summary Adjudication is GRANTED. **<u>Statement of Law</u>** "A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc., § 437c, subd. (c); *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 876.) "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1); *R.J. Land & Associates Construction Co. v. Kiewit-Shea* (1999) 69 Cal.App.4th 416, 424.) "A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has

		proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(1).) "First, and generally, from commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1213-1214.) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "Second, and generally, the party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord, *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 876-877; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1214; Code Civ. Proc., § 437c, subd. (p)(1) [plaintiff meets its burden by proving each element of its cause of action].) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851.) **<u>Merits</u>** "[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. [Citation.]" (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821; accord, *Coyote Aviation Corp. v. City of Redlands* (2025) 111 Cal.App.5th 955, 973.)

		“ ‘The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due. [Citations.]’ [Citation.]” (*Leighton v. Forster* (2017) 8 Cal.App.5th 467, 491; accord, *Zurich American Ins. Co. of Illinois v. World Private Security, Inc.* (C.D. Cal., July 17, 2020, No. CV-19-6595-MWF (KSX)) 2020 WL 5415395, at *7.) Plaintiff met its initial burden of production. It presents evidence that, on December 31, 2015, the parties entered into the U.S. Distributorship Agreement, wherein Plaintiff sold products on credit to Defendant Purcell-Murray Company, Inc. This Agreement evinces prior transactions between the parties, which establishes the relationship of Plaintiff as the creditor, and of Defendant as the debtor. This Agreement also provides evidence the parties had an agreement as to the amounts due from Defendant, as well as Defendant’s promise to pay the amounts due. (Lin Declaration, ¶¶ 5-7, 12; Exhibit 1 to Lin Declaration.) While Plaintiff performed its obligations under the Agreement, Defendant breached same by defaulting on its payment obligations, resulting in total damages of $3,464,197.90. (Lin Declaration, ¶¶ 5-12; Exhibits 1-3 to Lin Declaration.) By not opposing the Motion for Summary Judgment, Defendant did not meet its own burden of production to make a prima facie showing of the existence of a triable issue of material fact. Given the foregoing, Plaintiff’s Motion for Summary Judgment is granted. Moving party is ordered to give notice.
14	Onesource Distributors, LLC vs. Pheifer	**TENTATIVE RULING:** **<u>Motion to Amend Judgment</u>** Plaintiff OneSource Distributors, LLC, moves to amend judgment entered 04/08/2026 against Defendants Eric Pheifer and Katherine Fertig (collectively, the “Pheifer Parties”). For the following reasons, the motion is DENIED.

		Plaintiff moves pursuant to Code of Civil Procedure section 187 to amend the judgment entered 04/08/2026, to include an earlier award of attorney’s fees. Code of Civil Procedure section 187 provides that: “When jurisdiction is . . . conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.” Plaintiff does not justify its requested relief. On 02/04/2026, this court issued an order awarding Plaintiff attorney’s fees in the amount of $5,215.00. (ROA # 181.) That order has the force and effect of a money judgment and is enforceable through execution. (*See* Code Civ. Proc. §§ 680.230 [defining “judgment” to mean “a judgment, order, or decree entered in a court of this state”], 680.270 [defining “money judgment” to mean “that part of a judgment that requires the payment of money”]; *see, e.g., Jones v. Otero* (1984) 156 Cal.App.3d 754, 759 [holding an order imposing monetary sanctions may be enforced under the EJL].) Thus, the court need not take any additional action to carry out the effect of that 02/04/2026 order awarding fees. Amending the 04/08/2026 judgment to include the fee award is gratuitous and would create two separately enforceable judgments for the same fee award. For these reasons, the court will deny Plaintiff’s motion to amend judgment. Defendants to give notice.
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